

**Federal Supply Schedule (FSS) Sole Source Justification (SSJ)
Above the Simplified Acquisition Threshold (SAT)**

Program / Project: TRIAD Gold Level Software Support

IAW GSAR 538.7104-3, orders placed or BPAs established against FSS contracts are exempt from the requirements in FAR part 6. However, an ordering activity must justify its action when awarding on a sole source basis. This includes items peculiar to one manufacturer if the order (or FSS BPA established) is placed on a sole source basis IAW GSAR 538.7104-4(b)(2)(ii).

Coordination & Approvals

HURST.AUSTIN.J.1
599293031

Digitally signed by
HURST.AUSTIN.J.1599293031
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1. Statutory Exception (Select One)

- ☐ GSAR 538.7104-3(b)(i) The need is of such unusual urgency that following the procedures would result in unacceptable delays in fulfilling that need;
- ☒ GSAR 538.7104-3(b) (ii) Only one source is capable of providing the products, services, or solution required at the level of quality required because the products, services, or solutions are unique or highly specialized;
- ☐ GSAR 538.7104-3(b) (iii) The order should be issued on a sole source basis in the interest of economy and efficiency because it is a logical follow-on to an FSS order already issued on a competitive basis;
- ☐ GSAR 538.7104-3(b) (iv) It is necessary to place the order with a particular FSS contractor to satisfy a minimum guarantee established in the FSS BPA; or
- ☐ GSAR 538.7104-3(b) (v) A law expressly authorizes or requires that the purchase be made from a specified source.

